

A HOUSE DIVIDED?
Chief Election Commissioner Gyanesh Kumar (centre) with ECs Sukhbir Singh Sandhu and Vivek Joshi at Nirvachan Sadan, New Delhi

ACTS OF OMISSION

Charges against the Election Commission of India (ECI) and how the poll body counters them

↘ **CHARGE:** Internal decisions were taken without concurrence of all three commissioners. Election Commissioners (ECs) Sukhbir Singh Sandhu and Vivek Joshi reportedly recorded objections 14 times in 10 months

DEFENCE: ECI says written observations, questions and technical suggestions are routine in a multi-member body. All major decisions were ultimately unanimous, and not at Chief Election Commissioner (CEC) Gyanesh Kumar's sole discretion

↘ **CHARGE:** ECI altered statutory Form 6 through ECINet, its digital platform, by adding questions on whether the applicant, a parent or grandparent appeared in the previous Special Intensive Revision (SIR) roll. Critics say this required parliamentary approval under the Representation of People Act (RPA), 1950

DEFENCE: Form 6 was never amended; the downloadable statutory form remained unchanged. The online addition integrated Form 6 with a separate, valid SIR declaration, simplifying verification and avoiding a second e-signature. ECI adds that the Supreme Court upheld the SIR documentation framework

↘ **CHARGE:** ECINet centralises control over electoral rolls and constrained the statutory powers given to Electoral Registration Officers (EROs). Sandhu and Joshi raised concerns that field officials consequently lacked complete access to the rolls

DEFENCE: ECINet is decentralised. Only authorised Booth Level Officers (BLOs), EROs, Assistant EROs, District Election Officers (DEOs) and Chief Electoral Officers (CEOs) can perform statutory functions through their credentials. No HQ officer can perform these functions on their behalf

↘ **CHARGE:** In Goa, 97 voters remained off the final roll even after EROs found them eligible because ECINet lacked the rollback facility needed to reverse earlier exclusions

DEFENCE: ECI describes it as a limitation in a particular software workflow. It says 88 of the 97 voters have since filed fresh Form 6 applications

↘ **CHARGE:** A July 28 work-allocation order reportedly removed Deputy EC Sanjay Kumar from supervision of the IT division without proper authority. Sandhu and Joshi objected to it and wrote separately to the Cabinet Secretary (CS), seeking action against Senior Deputy EC Maneesh Garg

DEFENCE: ECI says the letters to CS concerned functioning of an officer on deputation, not a policy decision or control over the IT division. The disputed order was never implemented after their intervention, it says

↘ **CHARGE:** In West Bengal, 1.61 million appeals were reportedly filed in ECI's name seeking deletion of voters whom judicial officers had cleared, without Sandhu or Joshi being informed

DEFENCE: No response

↘ **CHARGE:** The 2025-26 Special Summary Revision (SSR) was not resumed despite Joshi pressing for